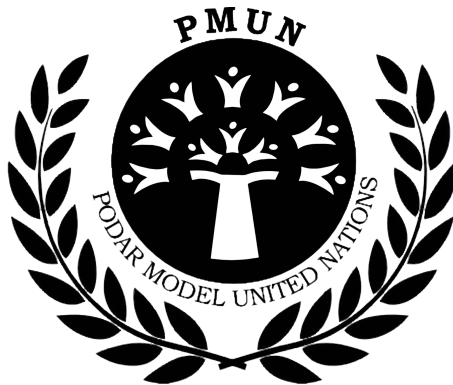




PMUN

BACKGROUND GUIDE - 4

Topic: Protecting Digital Rights during Conflicts

Committee: United Nations Human Rights Council (UNHRC)



Table of Contents

S.No.	Topic	Page nos.
A	Understanding the Topic	1
B	Understanding Your Country and its Laws for Digital and Cyber security	1-3
C	Learn About Your Committee	3
D	List of Agendas	3-4



A. Understanding the Topic

Main Issue

During political and regional conflicts, governments often shut down the internet, block social media, and monitor civilians' data to control the spread of misinformation and hate.

Additionally, during wartime, crucial digital systems such as power grids, healthcare networks, and banking services can be targets for attacks.

As a result, ordinary people suffer, losing their rights to express themselves, and their privacy and safety are at risk. Therefore, it is essential to create and implement clear policies and frameworks to protect digital safety, privacy, and the right to express opinions worldwide during conflicts.

Key Highlights of Issues:

1. Cyber operations and civilian infrastructure

- Cyberattacks on power, water, health, banking, or communications networks during war.
- Legal and ethical questions: Are these attacks allowed? How to ensure civilians are not harmed?

2. Surveillance, data collection, and privacy

- Use of mass surveillance, facial recognition, phone tracking, and bulk data collection "for security".
- Risks of targeting activists, journalists, minorities, refugees, or political opponents.

3. Information space and harmful content

- Disinformation, propaganda, and online hate that can incite violence or target specific communities.
- Decisions about blocking content vs protecting free speech.

4. Involvement of civilians, hackers, and tech companies

- Volunteer hacker groups ("hacktivists") attacking the enemy, and civilians sharing military information on social media.
- Tech companies acting like "digital superpowers" choosing sides, providing cloud services, or cutting off services to one side.

5. Protection of humanitarian organizations

- Cyberattacks on humanitarian agencies' data, including sensitive information on civilians and aid operations.
- Duty to protect humanitarian data systems (e.g., ICRC, UN agencies).

B. Understanding Your Country and its Laws for Digital and Cyber security

1. Facts about the country:

• Internet and Telecom Landscape:

- ~ Internet penetration, main telecom companies, and key social media platforms used in the country.
- ~ Dependence on foreign platforms or cloud services (e.g., US tech companies, regional providers).

• History of Conflict and Digital Measures:

- ~ Has the country been involved in war, internal conflict, emergency rule, or counter-terrorism operations recently?
- ~ During those times, any internet shutdowns, social media blocking, mass surveillance, SIM card registration drives, or cyberattacks on infrastructure were reported

- Current digital rights situation
 - ~ General human rights record on freedom of expression, privacy, and press freedom.
 - ~ Examples of: Censorship or content takedowns.
 - Arrests for online speech.
 - Monitoring of activists, journalists, or minorities through digital tools

2. National Laws and Policies

- **Constitutional protections**
 - ~ Any article that protects: Right to privacy, Freedom of expression or Access to information or media freedom
 - (Check if these rights can be restricted during emergencies or war (derogation clauses).)
- **Data protection and privacy laws**
 - ~ Existence of a data protection law or privacy law, and whether it covers: Government surveillance, Security agencies' use of personal data, Cross-border data transfers.
 - (Any rules on biometric databases, facial recognition, or big data in policing and security.)
- **Data protection and privacy laws**
 - ~ National cybersecurity strategy or act.
 - ~ Laws on: Hacking and cyberwarfare. Protection of critical infrastructure (power grids, hospitals, financial systems).
 - (Whether these laws mention obligations to protect civilians online in conflict.)
- **Telecom and media regulations**
 - ~ Who controls the internet and telecom in crises: can the government order shutdowns or blocking?
 - ~ Licensing rules for platforms and media that might be used for propaganda or hate speech
 - (Whether these laws mention obligations to protect civilians online in conflict.)

3. Relevant international law and norms to connect with

Every delegate should know what global rules their country has signed up to, then decide if their country is more "pro-rights" or "security-focused" in this topic.

- **Human rights treaties**
 - ~ Universal Declaration of Human Rights: right to privacy, freedom of expression, access to information.
 - ~ International Covenant on Civil and Political Rights (ICCPR): look at articles on privacy and expression, and how states can limit them in emergencies.
- **International humanitarian law (IHL) and armed conflict**
 - ~ Geneva Conventions principles: distinction (civilian vs military targets), proportionality, necessity – applied to cyber operations and digital systems.
 - ~ How cyberattacks on hospitals, power grids, or communication networks might violate protections for civilians.
- **Regional human rights systems (where relevant)**
 - ~ European Court of Human Rights decisions on surveillance and wartime data collection (e.g., cases related to Ukraine–Russia conflict).
 - ~ African, Inter-American, or other regional courts' positions on digital surveillance or shutdowns.

4. Reports and resources that students can read

- **ICRC – “Protecting Civilians against Digital Threats during Armed Conflict”**
~ AExplains how cyber operations, harmful information, civilian hackers, and attacks on humanitarian organisations threaten civilians and suggests guiding principles for states and companies.
- **ICRC & Geneva Academy – “Civilian Involvement in Digitalising Armed Conflicts”**
~ Analyses civilians and tech companies participating in cyber operations and legal consequences under international humanitarian law.
- **CCDCOE – “The Rights to Privacy and Data Protection in Times of Armed Conflict”**
~ Discusses how modern warfare affects privacy and data protection, and gaps in current law.
- **NGO or think tank articles (good for examples)**
~ Access Now and similar groups on defending digital rights in crisis and conflict.
~ Case studies on the Russia–Ukraine conflict and how it reshaped cyber warfare, cloud security, and digital blockades.

5. Specific Information to be researched

- **The country’s voting record and statements**
~ Look for past speeches, UN votes, or statements on Cybersecurity, Internet freedom, Digital surveillance, and the Protection of civilians online.
- **Allies, blocs, and typical stance**
~ Does the country usually support strong human rights language or security-heavy language?
~ Which regional groups or alliances (e.g., EU, African Union, ASEAN, Arab League, NATO) shape its position?
- **Policy proposals the country might support**
~ Transparency and oversight of surveillance.
~ Limits on cyberattacks against civilian infrastructure.
~ Protection of journalists, activists, and humanitarian data.
~ Corporate responsibility for tech companies in war

C. Learn About Your Committee

The power of your committee, decision-making process, and past actions in this field under your committee.

D. List of Agendas

1. To what extent can states limit digital rights (privacy, free expression, access to information) in the name of national security during conflict?

- Are internet shutdowns or social media blocks ever justified to stop violence and disinformation, or do they always harm civilians more than they help?
- Should emergency powers for surveillance and data collection automatically expire after conflict, or can they become permanent?

2.Should international law explicitly ban cyber operations that affect civilian digital infrastructure (health systems, power grids, banking, telecom) during armed conflict?

3.How far can governments and humanitarian actors go in collecting and using personal and biometric data (e.g., refugees, IDPs, aid recipients) during conflict?

4.What responsibilities should technology companies (social media platforms, cloud providers, telecoms) have in protecting digital rights during conflict?

RESEARCH LINKS:

1. <https://www.ohchr.org/en/press-releases/2022/06/un-experts-highlight-digital-rights-conflict-and-humanitarian-crises>
2. <https://www.undp.org/blog/undps-digital-rights-dashboard-conversation-starter-human-rights-digital-age>
3. <https://www.accessnow.org/un-security-council-digital-rights/>
4. https://papers.ssrn.com/sol3/papers.cfm?abstract_id=5243571
5. <https://www.diplomacy.edu/resource/report-stronger-digital-voices-from-africa/africa-participation-human-rights-council/>
6. <https://www.diplomacy.edu/resource/report-stronger-digital-voices-from-africa/africa-participation-human-rights-council/>
7. <https://ccdcoe.org/library/publications/the-rights-to-privacy-and-data-protection-in-times-of-armed-conflict/>
8. <https://library.icrc.org/library/docs/DOC/icrc-4735-002.pdf>
9. <https://www.cambridge.org/core/journals/international-review-of-the-red-cross/article/abs/protecting-civilians-against-digital-threats-during-armed-conflict-final-report-of-the-icrcs-global-advisory-board/297A6B1B090529F87B9D745D7E94DAA2>
10. <https://www.lawfaremedia.org/article/digital-rights-in-armed-conflict-and-the-ukraine-v.-russia-decision>